

24STCV19224 24STCV19224

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV19224 Hearing Date: June 29, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV19224

LINDA

THOMAS vs THE ESTATE OF MANOLIS FRAGOUDAKIS

June

29, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION FOR PROTECTIVE ORDER REQUIRING REMOTE DEPOSITION OF PLAINTIFF LINDA MAY THOMAS.

RULING:

The Court grants the Motion
and will sign and file the Proposed Order received on May 12, 2026.

I.

BACKGROUND

The Court incorporates by
reference the Background section of the Minutes entered January 5, 2026,
granting the Special Motion to Strike the "Counter-Cross-Complainant And Plaintiff's Counter-Cross-Complaint."

On May 12, 2026, LINDA
MAY THOMAS (Plaintiff) filed Motion for Protective Order, requiring a remote
deposition instead of in-person, based upon age (76), frailty and concern about
being confronted in person by opposing counsel.

MARK A. ROSS (Defendant) opposes
a protective order, including based upon law allowing Defendant to select an
in-person deposition. Defendant also requests \$3,229.80 in sanctions against
Plaintiff and counsel.

The Court had continued
the matter, for the Surreply, because of evidence filed with the Reply. "A
court has broad discretion to accept or reject late-filed papers, and the
general rule is that new evidence is not permitted even on reply." (Haydon
v. Elegance at Dublin (2024) 97 Cal.App.5th 1280, 1289.) Courts
can consider moving parties' new evidence, by accommodating opposing parties'
due-process rights and allowing a continuance for a supplemental filing. (E.g.,
Wall Street Network, Ltd. v. N. Y. Times
Co. (2008) 164 Cal.App.4th 1171, 1183, 1191, fn. 11; Plenger v. Alza Corp. (1992) 11 Cal.App.4th 349, 362.)

II.

LEGAL STANDARD

To prevail on motions for
protective orders, moving parties have the burden "to demonstrate that the
'discovery sought is unreasonably cumulative or duplicative, or is obtainable
from some other source that is more convenient, less burdensome, or less expensive' ...,
or that the 'selected method of discovery is unduly burdensome or expensive'"
(Sinaiko Healthcare Consulting, Inc. v.

Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402.) The decision upon whether to enter a protective order lies within the sound discretion of the court. (Raymond Handling Concepts Corp. v. Superior Court (1995) 39 Cal.App.4th 584, 588, 591.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Safechuck v. MJJ Prods., Inc. (2023) 94 Cal.App.5th 675, 700 (quoting Code Civ. Proc., § 2025.420, subd. (h)).)

III.

ANALYSIS

In addition to reporting Plaintiff's age, being fragile, and weighing 92 pounds, Plaintiff's counsel declares a reason for a remote deposition as being Defendant's prior aggressive and abusive conduct. (Motion, “MEET AND CONFER DECLARATION OF MARIA PADGETT,” ¶¶ 4, 9.)

Defendant counterargues that Plaintiff's hearsay evidence fails to show good cause, concerns about Plaintiff and Defendant interacting are unfounded, and in-person depositions are preferred to view deponents' demeanor.

The Reply includes Plaintiff's declaration, including details about medical problems hindering walking and sitting, and prior experiences interacting with Defendant, which the previously filed Opposition could not address.

The Surreply is accompanied by evidentiary objections, reasonable accommodations offers, and reassertions about in-person depositions being superior.

Regarding rule authorization for parties to arrange to take depositions remotely, “[o]n motion

by any person, the court in a specific action may make such other orders as it deems appropriate.” (Cal. Rules of Court, rule 3.1010(d). See also Code Civ. Proc., § 2025.310; Cal. Judges Benchbook Civ. Proc. Discovery § 14.66.)

Governing opinions have been flexible as to whether to accept a doctor’s note about physical conditions or require an admissible declaration. Under Code of Civil Procedure section 473, in support of relief from excusable neglect, based upon illness or incapacity, doctors’ admissible evidence is not necessarily required, because lay witnesses generally are competent to testify from their own knowledge of their diseases, injuries, or physical conditions, as distinguished from expert opinion. (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 32.) Also, an opinion accorded limited weight to an unverified doctor’s note. (See Craddock v. Hilton Domestic Operating Co. (2025) 112 Cal. App. 5th 284, 302 [“Neither of the doctor’s notes were in the form of a declaration, nor were they signed under penalty of perjury. They had, at best, limited value,...”].) “Without requiring the declaration of a physician, a number of California decisions have upheld orders granting discretionary relief under section 473, subdivision (b), because of counsel’s illness.” (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 32.) But a doctor’s declaration was desirable, where proof with regard to health of the declarant was inconclusive, for purposes of deciding relief under Code of Civil Procedure section 473. (Davis v. Thayer (1980) 113 Cal.App.3d 892, 909.)

“Although we have not as yet reached the point where the participants at a deposition will be required to be licensed by the state boxing commission [citation], we note with dismay the ever growing number of cases in which most of the trappings of civility between counsel are lacking. Some courts ... are calling for professionalism at depositions.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1438.) “The court may also appoint a referee to preside over the deposition and rule on any objections.” (Emerson Elec. Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110. See also generally Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2026) §8:1804.5 (“A discovery referee may be appointed to monitor depositions where antagonism between the parties might otherwise prolong the proceedings and frustrate discovery.”).

Here, the Court finds that Plaintiff’s age coupled with a disabling medical condition, proved by

Plaintiff's declaration attaching a medical expert's note, persuasively shows good cause for the requested protective order. (Cf., *Gropen v. Superior Court* (2023) 89 Cal.App.5th 1068, 1077, fns. 5, 9 ["accommodation under rule 1.100 at the hearing on the motion for a protective order,..."].)

As for Plaintiff's expressed concerns about opposing attorney's potentially uncivil conduct in an in-person deposition, that issue is moot, where disabling conditions already support the Protective Order.

The Court appreciates Defendant's suggestions about a closer deposition and deponent breaks, but in its discretion elects to enter a Protective Order requiring a remote deposition, as the being superior reasonable accommodation of health issues.

Additionally, the Court observes that the legal profession has evolved in recent years to become much more accepting of remote depositions as contrasted with outdated perceptions that in-person depositions were needed to observe witness demeanor. And in the Court's own experience, demeanor has been very observable on-screen during remote appearances.

As for Plaintiff's expressed concerns of an uncivil deposition, the Court has considered appointing a Discovery Referee (retired Judge) to attend a live deposition, at the parties shared expense, but a remote deposition economically avoids that consideration.

Additionally, the Court denies Defendant's sanctions request, by finding that the Motion is substantially justified, considering the flexible judicial discretion involved in protective orders, and the unrefined state of the governing law concerning remote depositions.

IV.

CONCLUSION

The Court grants the Motion, as prayed.

The Court denies the
opposing request for monetary sanctions.

The Court sustains
Defendant's evidentiary objections to the doctor's note, but reasons that it does
not affect the ruling outcome, as analyzed above.